

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Sarah Sitzler,

Plaintiff,

— against —

City of New York, Adan Suazorodas and John
Does ##1-5,

Defendants.

Index No.

SUMMONS

JURY TRIAL DEMANDED

To the above-named Defendants: You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the location where the claims arose.

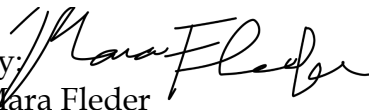
TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street New York,
New York 10007

Adan Suazorodas
Uniformed Promotions Training Unit
1 Police Plaza
New York, NY 10038

Dated: November 2, 2023
New York, NY

WERTHEIMER LLC

By: 

Mara Fleder

14 Wall Street, Suite 1603

New York, New York 10005

(646) 720-1098

joel@joelwertheimer.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Sarah Sitzler,

Plaintiff,

— against —

City of New York, Adan Suazorodas and John
Does ##1-5,

Defendants.

Index No.

COMPLAINT

JURY TRIAL DEMANDED

PARTIES

1. Plaintiff Sarah Sitzler is a resident of Philadelphia, Pennsylvania.
2. Adan Suazorodas is a New York City police officer who works in the Uniformed Promotions Training Unit.
3. John Does #1-#5 are New York City police officers who work in the 70th Precinct.
4. Defendant City of New York is a municipal corporation in the State of New York.

JURISDICTION AND VENUE

5. This Court has jurisdiction over this action pursuant to general jurisdiction under the New York State Constitution.
6. Venue is proper under CPLR § 503(a) because a substantial part of the events giving rise to the claim occurred in Kings County, New York.

FACTS

7. On May 30, 2020, in Brooklyn New York, Plaintiff participated in a peaceful protest supporting the Black Lives Matter movement in the wake of George Floyd's murder.

8. The protest began in the mid-afternoon with a rally on the southeast side of Prospect Park. The protesters called for justice for George Floyd and for charges to be brought against his killers.

9. Plaintiff had never been involved in a protest before but felt compelled to show up in support of the Black Lives Matter movement, and to stand in solidarity with her community in Flatbush, Brooklyn.

10. Plaintiff joined the crowd of protesters at the rally and then followed as they began to march. They exited the park and marched south on Flatbush Avenue, and then east on Tilden Avenue.

11. Plaintiff's involvement in the protest was entirely peaceful. She chanted and marched, carrying only a small cardboard "Justice for Breonna Taylor" sign, and a Nikon camera slung over her shoulder.

12. When Plaintiff and the other protesters came to the intersection of Bedford Avenue and Tilden Avenue, the march paused for a period of time as the protesters found themselves facing a line of uniformed police officers standing in their way.

13. The crowd of protesters was dense, with hundreds assembled and filling the street.

14. Tensions felt high, but nothing happened for a period of time. A helicopter circled low, overhead. Plaintiff saw a drone hovering above the crowd.

15. At some point protesters closer to the police began to move again, marching North on Bedford Avenue, moving away from the police. Plaintiff followed the crowd.

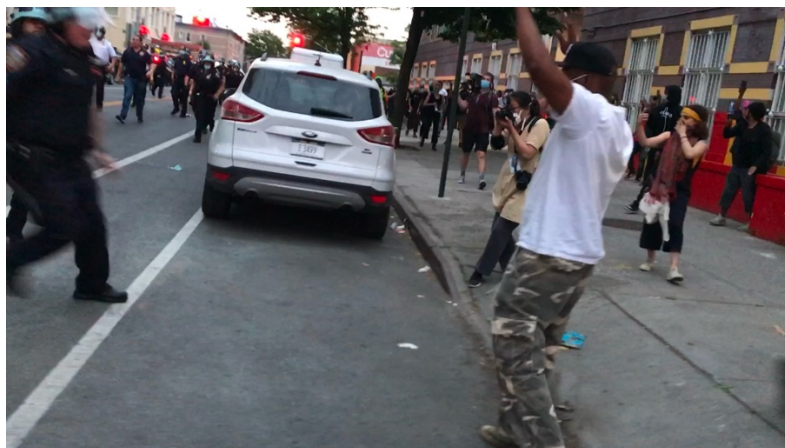
16. As Plaintiff followed the crowd up Bedford Avenue, she saw people being treated on the street for pepper spray exposure. The crowd was beginning to thin.

17. When Plaintiff and the other protesters passed Snyder Avenue, by P.S. 6, Plaintiff and other protesters again encountered police.

18. Plaintiff watched uniformed NYPD officers, some wearing helmets and face shields, come down the street.

19. Officers shouted at the protesters to get off the street. Plaintiff did as instructed.

20. Plaintiff, as well as other members of the protest, took out their cell phones to film as they saw the police come their way.



21. Suddenly, officers began rushing from the street towards the protesters on the sidewalk.

22. Plaintiff watched and filmed as one of the officers rushed with his left arm outstretched and his right hand clutching his baton towards a protestor, who stood beside her, with his hands raised in the air.



23. Three officers followed behind yelling, “move, move” and “let’s go, let’s go,” as they descended on the protestors gathered on the sidewalk. The officers held their batons and gestured with them towards the protestors. They charged at the protestors, including Plaintiff.

24. One of those officers, Adan Suazorodas, yelled at her and the other protestors, forcing his way at them causing Plaintiff to take steps backwards in retreat. Plaintiff watched the officers through her phone as she tried to back away to safety.



25. Suddenly, Plaintiff felt a jolt of contact that knocked her down to the ground. Her right shoulder taking the full force of the impact.

26. John Doe #1, to the right of Officer Suazorodas, tall and white, wearing a silver watch, knocked Plaintiff forcefully over, causing her to crash to the ground.

27. Plaintiff was disoriented, shocked by the force of the collision. A wave of adrenaline rushed over her, obscuring the pain forming in her right shoulder. The camera she had slung over her shoulder crashed to the ground, and broke.

28. The officers towered above her, yelling at her to get up.

29. Plaintiff tried to slowly lift herself off the ground but felt something off.

30. The officers continued yelling at Plaintiff to “move, move” and “move back.”

31. Plaintiff told the officer forcing her to continue moving that they had just knocked her down. She told the officers she had fallen and hurt her arm. The

officers responded, "I'm not going to tell you again," and "turn around so you walk faster."

32. Plaintiff turned around and walked carefully home to her apartment on Martenese Street.

33. As Plaintiff got home and the adrenaline began to wear off, the pain in her arm began to take hold. Her right elbow had a large and painful abrasion. Her right shoulder throbbed.

34. Fearful of going to the hospital in the height of the pandemic, and not wanting to divert care away from other New Yorkers hospitalized with Covid-19, Plaintiff tried to tough it out, hoping the pain would pass by morning.

35. After a sleepless night, feeling the full spectrum of pain, Plaintiff decided to go to an urgent care facility to get x-rays.

36. On May 31, 2020, Plaintiff visited Modern MD, an urgent care practice on Flatbush Avenue. She presented with a decreased range of motion, swelling to her right shoulder, numbness, tingling sensations, and reported hearing a popping sound in her shoulder.

37. Plaintiff had x-rays taken of her right shoulder and her right elbow, which revealed a closed fracture on her right humerus, at the top of the shaft, just below her right shoulder. Plaintiff was given a sling to wear. Her right elbow had abrasions that staff cleaned and dressed with antibiotic ointment and bandages.

38. The urgent care medical staff instructed Plaintiff to follow up with an orthopedist as soon as possible.

39. Plaintiff followed up with Dr. Kenneth Egol, an orthopedist at NYU Hospital a week later. Dr. Egol instructed Plaintiff to continue wearing the sling and to begin attending physical therapy sessions.

40. Plaintiff attended physical therapy appointments at Century Medical on Flatbush Avenue for months, while she had the sling on and after she was allowed to stop using it.

41. With time, Plaintiff's arm fracture healed and she regained full range of motion, though it continues to make a clicking noise.

42. Plaintiff also suffered emotional harm from the contact with the police on May 30, 2020. The experience exacerbated her anxiety and led her to feel vulnerable and afraid of encounters with the police.

43. For the two months when Plaintiff had to wear the sling, she felt vulnerable and afraid to go outdoors. She has continued to avoid police-contact in the years since as she feels her body go into fight-flight mode when she sees them approach.

44. Plaintiff's claims were ultimately not part of the class action settlements reached with the City of New York arising out of the George Floyd protest, and so she sought counsel for her claims.

45. She made significant efforts to try to identify the John Doe officers in the three years after the claim, including reviewing social media accounts and speaking to other protestors about the incident, but she was never able to identify him.

MONELL ALLEGATIONS

46. Prior to and during these protests, the City and NYPD failed to adequately train, supervise, and discipline police officers, including the individual officers named in this action, to prevent the use of excessive force.

47. This Complaint incorporates by reference the allegations regarding unlawful NYPD practices and policies relating to protests complained of in *State of New York v. City of New York et al.*, 21-cv-322 (S.D.N.Y.) and *Payne v. de Blasio et al.*, 20-cv-8924 (S.D.N.Y. 2020).

48. Since at least the 1990's, the NYPD has failed to appropriately train its officers on the proper handling of First Amendment assemblies.

49. In fact, the NYPD's core training related to protest response to this day is based on crowd management and disorder control tactics for policing large-scale civil disorder and riots.

50. In 1997, the NYPD's Disorder Control Unit ("DCU") created the "Disorder Control Guidelines."

51. Upon information and belief, to this day, that document forms the core of today's NYPD protest response-related training.

52. The Disorder Control Guidelines treat disorders as military engagements and copies military tactics and focus on tactics designed to *deter, disperse, and demoralize* groups, such as disorder control formations and making mass arrests.

53. Upon information and belief, Disorder Control Guidelines were never meant to be guidelines for the policing of lawful First Amendment assemblies such as demonstrations – only for large-scale civil disorder such as riots.

54. However, neither the Disorder Control Guidelines, nor, upon information and belief, any related NYPD training, contain meaningful direction on the core First, Fourth, or Fourteenth Amendment principles that must guide constitutional policing of First Amendment assemblies.

55. For example, upon information and belief, there is virtually no NYPD training – and certainly no *meaningful* NYPD training – focusing on how to utilize the tactics described in the Disorder Control Guidelines without infringing on the constitutional rights of protesters, such as how to make probable cause determinations or the requirements of providing an alternative avenue of protest, meaningful time and a path of egress when issuing a dispersal order, and the like.

56. Upon information and belief, that additional DCU training is principally modelled on the core principles and tactics in the Disorder Control Guidelines.

57. However, many of the officers deployed to respond to the protests in 2020, did not even receive *that* training, which was supposedly required of them.

58. As a result, as a report by the Corporation Counsel for the City of New York (“OCC Report”) noted, “for a majority of the officers who were assigned to the George Floyd protests, their training on policing protests was limited to what they had received as recruits in the Academy.”

59. Between at least 2004 and the present, the NYPD's mass arrest and violent crowd control and protest policing tactics have been on full display in the streets of New York City; the subjects of unfavorable coverage in the media, including coverage explicitly showing video evidence of NYPD members engaging in uses of excessive force in connection with crowd control while policing protests; documented in complaints to the Civilian Complaint Review Board and other agencies, as well as the litigations discussed above, which have cost the city tens of millions of dollars in judgments and settlements.

60. Indeed, in connection with the 2002 World Economic Forum and the 2004 RNC policing operations, NYPD supervisors - including DCU supervisors charged with designing and implementing NYPD protest policing-related policies and related training - routinely created "after action reports" that documented and critiqued NYPD plans for and responses to protest activities.

61. For example, in a March 17, 2006, *New York Times* article that was published while discovery about related policies and practices was ongoing in the 2004 RNC litigations, "Police Memos Say Arrest Tactics Calmed Protest," Jim Dwyer reported on the revelation of 2002 WEF after-action reports in then-ongoing litigation, *Allen v. City of New York*, 03 Civ. 2829 (KMW) (GWG) (SDNY).

62. Those reports praise employing militarized tactics such as the "staging of massive amounts" of officers in riot gear including riot helmets and militarized "equipment" such armored vehicles, prisoner wagons, and buses in view of demonstrations in order to "cause them to be alarmed" and as a "deterrent" as well as

the use of “proactive” arrests in order to have a “powerful psychological effect” on protesters.

63. After the 2002 WEF after-action reports were disclosed in *Allen* and the 2004 RNC- related after-action reports were disclosed in the RNC litigations, and some of them were made public as a result, upon information and belief, rather than continuing to create such reports frankly documenting and assessing the NYPD’s protest policing-related policies and tactics, the NYPD opted to stop creating such records.

64. For example, according to the Corporation Counsel’s report, NYPD records do not show any protest-related after-action reviews undertaken between the 2004 Republican National Convention and until the events of the George Floyd protests.

65. Nevertheless, upon information and belief, at all times relevant herein, City policymakers routinely received reports regarding arrests made in connection with perceived First Amendment assemblies, including through internal reports such as Unusual Occurrence Reports; Mass Arrest Reports including data tracking arrestees, the length of time it took them to go through the system, whether they were released with a summons or DAT, their proposed arrest charges, and other information related to the involved in mass arrests related to police actions taken in relation to an event; and/or other reports including information arrests, use of force protest arrest processing, and/or related prosecutions.

66. Despite the wealth of evidence of NYPD members’ historical brutality against protesters, Defendant City has ignored, and/or failed to utilize,

relevant information, including information gleaned from reports and lawsuits, as well as other data points, to identify deficiencies in NYPD training as it relates to constitutionally compliant protest policing.

67. For example, in a deposition in *Packard v. City of New York*, 15-cv-7130 (S.D.N.Y.), the City of New York testified that in regards to protest police training it did not review: (i) decline to prosecute decisions, (ii) conviction conversion rates or (iii) allegations and settlements in lawsuits relating to protest.

68. As another example, Defendant City apparently does not take allegations in lawsuits filed by protesters claiming they were falsely arrested during protests into account in considering its protest policing-related policies and training, in effect taking the position that there is nothing to be learned from lawsuits and settlements.

69. For example, in a 2017 deposition, Defendant City could identify no impact litigation against Defendant City between 2000 and 2011 had on Defendant City's relevant policies, practices, customs, or training.

70. Relatedly, according to the Corporation Counsel, "the NYPD does not demonstrate a consistent commitment to reviewing and responding to external critiques regarding the policing of protests."

71. While both City agencies made reports and recommendations that include what may be characterized as critiques of some NYPD protest-related training, neither the DOI nor the Corporation Counsel, nor any other City agency, has released the contents of that training – despite that much of its core contents are already publicly

available, including on the public docket in *Case, et al. v. City of New York, et al.*, 14 Civ. 9148 (AT)(BCM).

72. At bottom, the NYPD's near-exclusive focus on deterring, dispersing, and demoralizing in trainings related to policing protests, coupled with the failure to train on specific, relevant aspects of constitutional policing of protests, let alone how to encourage or facilitate protests - despite having received clear notice that NYPD policing of protests has caused the systemic violations of protesters' constitutional rights for years - demonstrates both a history, and a policy, of disregard for the First Amendment, Fourteenth Amendment, and other, related rights of Plaintiff and other similarly injured protesters.

FIRST CLAIM FOR RELIEF

Excessive Force/Assault and Battery

Defendants' Violations of Plaintiff's Rights Under the Fourteenth Amendment to the United States Constitution

73. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

74. Defendants used force against Plaintiff that was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

75. The types and levels of force Defendants used against Plaintiff were unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

76. Defendants used types and levels of force against Plaintiff and other protesters that were in contravention of, or inconsistent with, related NYPD policies and/or training.

77. The City of New York failed to discipline NYPD members who used excessive force against Plaintiff and other protesters.

78. Defendants used force against Plaintiff based on her position in or proximity to a perceived group, without first having given the perceived group clearly communicated, prior notice as well as a meaningful opportunity to comply with police orders, and/or dissociate with the perceived group.

79. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

SECOND CLAIM FOR RELIEF

First Amendment Infringements, Including First Amendment Retaliation Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution

80. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

81. Defendants (a) retaliated against Plaintiff for engaging in speech and/or conduct protected by the First Amendment, and (b) imposed restrictions on such protected speech and/or conduct that violated Plaintiff's First Amendment rights,

including, subjecting Plaintiff to excessive force, and in otherwise violating Plaintiff's rights and engaging in the acts and omissions complained of herein.

82. Defendants engaged in those and other acts and omissions complained of herein in retaliation for Plaintiff's protected speech and/or conduct.

83. Defendants engaged in the acts and omissions complained of herein in order to prevent Plaintiff from continuing to engage in such protected speech and/or conduct.

84. Defendants engaged in the acts and omissions complained of herein in order to prevent and/or discourage Plaintiff and others from engaging in similar protected conduct in the future.

85. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who implemented them subjected Plaintiff to violations of the First Amendment rights.

86. Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment-based claims – including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline - with malice.

87. Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment retaliation claims in response to the perceived viewpoint and/or message expressed by Plaintiff.

88. Upon information and belief, Defendants did not subject other protesters expressing “Blue Lives Matter” or other, similar, pro-police messages who were similarly situated to Plaintiff in terms of their conduct and/or its potential public ramifications to the conduct, policies, practices, and/or customs complained of herein.

89. Plaintiff suffered actual chill in that She was prevented and/or deterred from or impeded in participating in protected conduct on the date of and after the incident; and/or suffered adverse effects on their protected speech and/or conduct; and/or otherwise suffered some concrete harm(s).

THIRD CLAIM FOR RELIEF
NEGLIGENCE

90. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

91. Plaintiff filed a Notice of Claim on November 2, 2023, the requirement for which had been tolled by state law tolling the claims of individuals who had potential claims in class action lawsuits brought against the City of New York.

92. Plaintiff will sit for a 50-h hearing when scheduled by the City.

93. The City of New York and its officers owed a duty of care to the Plaintiff.

94. The City and its employees negligently breached that duty of care in failing to exercise reasonable care in responding to the protest Plaintiff attended.

95. The failure to exercise reasonable care led to Plaintiff’s injuries.

FOURTH CLAIM FOR RELIEF**Municipal Liability**

Pursuant to 42 U.S.C. 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution

96. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

97. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to: (a) formal policies, rules, and procedures of Defendant City; (b) actions and decisions by Defendant City's policymaking agents including; (c) customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City; (d) Defendant City's deliberate indifference to Plaintiff's rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

98. These Constitutional failures caused Plaintiff's injuries.

PRAYER FOR RELIEF WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

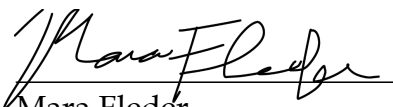
1. awarding compensatory damages against the Defendants;
2. awarding punitive damages in an amount to be determined at trial;

4. awarding Plaintiff reasonable attorneys' fees and costs under applicable law; and

5. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
November 2, 2023

WERTHEIMER LLC

By: 
Mara Fleder
14 Wall Street, Suite 1603
New York, New York 10005
(646) 720-1098
joel@joelwertheimer.com